

HIGHFIELDS ACADEMY
Privacy Notice
(How we use pupil information)

Why do we collect and use pupil information?

We Highfields Academy collect and process pupil information as part of our public functions under both the Data Protection Act 1998 and General Data Protection Regulation. An example of this is the school census return which is a statutory requirement on schools under [Section 537A of the Education Act 1996](#).

We use the pupil data:

- to support pupil learning
- to monitor and report on pupil progress
- to provide appropriate pastoral care
- to assess the quality of our services
- to comply with the law regarding data sharing

The categories of pupil information that we collect, hold and share include:

- Personal information (such as name, unique pupil number and address)
- Characteristics (such as ethnicity, language, nationality, country of birth and free school meal eligibility)
- Attendance information (such as sessions attended, number of absences and absence reasons)
- Assessment information
- Exclusions/behavioural information
- Relevant medical information
- Special educational needs information
- Photograph, Media, Website permissions

Collecting pupil information

Whilst the majority of pupil information you provide to us is mandatory, some of it is provided to us on a voluntary basis. In order to comply with the General Data Protection Regulation, we will inform you whether you are required to provide certain pupil information to us or if you have a choice in this.

Storing pupil data

We have a record retention schedule which sets out how long we must keep information about pupils

Personal information about pupils	Retain whilst the child remains in school
Child protection	Dob of the child plus 25 years
SEN information	Dob of the child plus 25 years
Educational visits	Date of visit plus 14 years

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How will my information be stored?

We will keep personal information about you while you are a pupil at our school. We may also keep it after you have left the school, where we are required to by law.

Who do we share pupil information with?

We routinely share pupil information with:

- schools that the pupils attend after leaving us
- our local authority
- the Department for Education (DfE)
- Your family and representatives
- Educators and examining bodies
- Our regulator (the organisation or “watchdog” that supervises us, ie: Ofsted.
- Suppliers and service providers – so that they can provide the services we have contracted them for, for example: Assessment systems, MyMaths.
- Financial organisations
- Our auditors
- Health and social welfare organisations
- Professional advisers and consultants
- Charities and voluntary organisations
- Police forces, courts, tribunals
- Professional bodies

Why we share pupil information

We do not share information about our pupils with anyone without consent unless the law allows us to do so.

We share pupils’ data with the Department for Education (DfE) under regulation 5 of The Education (Information About Individual Pupils) (England) Regulations 2013. This data sharing underpins school funding and educational attainment policy and monitoring.

Data collection requirements:

To find out more about the data collection requirements placed on us by the Department for Education (for example; via the school census) go to <https://www.gov.uk/education/data-collection-and-censuses-for-schools>.

A parent/guardian can request that **only** their child’s name, address and date of birth is passed to their local authority or provider of youth support services by informing us. This right is transferred to the child/pupil once he/she reaches the age 16.

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For more information about services for young people, please visit our local authority website http://www.cheshireeast.gov.uk/livewell/care-and-support-for-children/services-from-childrens-social-care/youth-offending-and-preventative-services/youth_support.aspx

The National Pupil Database (NPD)

The NPD is owned and managed by the Department for Education and contains information about pupils in schools in England. It provides invaluable evidence on educational performance to inform independent research, as well as studies commissioned by the Department. It is held in electronic format for statistical purposes in the [National Pupil Database](#). This information is securely collected from a range of sources including schools, local authorities and awarding bodies.

We are required by law, to provide information about our pupils to the DfE as part of statutory data collections such as the school census and early years' census. Some of this information is then stored in the NPD. The law that allows this is the Education (Information About Individual Pupils) (England) Regulations 2013.

To find out more about the pupil information we share with the department, for the purpose of data collections, go to <https://www.gov.uk/education/data-collection-and-censuses-for-schools>.

To find out more about the NPD, go to <https://www.gov.uk/government/publications/national-pupil-database-user-guide-and-supporting-information>.

The department may share information about our pupils from the NPD with third parties who promote the education or well-being of children in England by:

- conducting research or analysis
- producing statistics
- providing information, advice or guidance

The Department has robust processes in place to ensure the confidentiality of our data is maintained and there are stringent controls in place regarding access and use of the data. Decisions on whether DfE releases data to third parties are subject to a strict approval process and based on a detailed assessment of:

- who is requesting the data
- the purpose for which it is required
- the level and sensitivity of data requested:
- the arrangements in place to store and handle the data

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To be granted access to pupil information, organisations must comply with strict terms and conditions covering the confidentiality and handling of the data, security arrangements and retention and use of the data in compliance with the GDPR.

For more information about the department's data sharing process, please visit:

<https://www.gov.uk/data-protection-how-we-collect-and-share-research-data>

For information about which organisations the department has provided pupil information, (and for which project), please visit the following website:

<https://www.gov.uk/government/publications/national-pupil-database-requests-received>

To contact DfE: <https://www.gov.uk/contact-dfe>

Requesting access to your personal data

You have the right under the Data Protection Act 1998 (General Data Protection Regulation) to request a copy of your information and to know what it is used for and how it has been shared. This is called the right of subject access.

To make a request for your personal information, or be given access to your child's educational record, contact Mr S Dyson, Principal

You also have the right to:

- object to processing of personal data that is likely to cause, or is causing, damage or distress
 - prevent processing for the purpose of direct marketing
 - object to decisions being taken by automated means
 - in certain circumstances, have inaccurate personal data rectified, blocked, erased or destroyed; and
 - claim compensation for damages caused by a breach of the Data Protection regulations
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- If you have a concern about the way we are collecting or using your personal data, you should raise your concern with us in the first instance or directly to the Information Commissioner's Office at <https://ico.org.uk/concerns/>
 - Call 0303 123 1113
 - Or write to: Information Commissioner's Office, Wycliffe House, Water Lane, Wilmslow, Cheshire, SK9 5AF

Contact:

If you would like to discuss anything in this privacy notice, please contact:

- Mr S Dyson, Principal , head@highfieldsnantwich.cheshire.sch.uk